

HOUSE No. 4651

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 27, 2025.

The committee on Higher Education, to whom was referred the petition (accompanied by bill, House, No. 1427) of Mindy Domb and Priscila S. Sousa for legislation to establish an open educational resource trust fund, reports recommending that the accompanying bill (House, No. 4651) ought to pass.

For the committee,

DAVID M. ROGERS.

HOUSE No. 4651

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act reducing the cost of attending college.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 10 of chapter 15A of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the definition of “HEFA” the following
3 definition:-

4 “Open educational resources” or “OER”, teaching, learning and research materials in any
5 medium, digital or otherwise, that reside in the public domain or have been released under an
6 open license that permits no-cost access, use, adaptation and redistribution by others with no or
7 limited restrictions.

8 SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting after
9 section 2KKKKKK the following section:-

10 Section 2KKKKKK. (a) For the purposes of this section the following terms shall, unless
11 the context clearly requires otherwise, have the following meanings:

12 “Commissioner”, the commissioner of higher education.

“Department”, the department of higher education.

“Fund”, the Open Educational Resource Trust Fund, established in subsection (b).

“Open educational resource” or “OER”, as defined in section 10 of chapter 15A.

“Public institution of higher education”, an institution listed in section 5 of chapter 15A.

“Statewide OER Advisory Council”, the advisory council, consisting of representatives from the public institutions of higher education listed in section 5 of chapter 15A and overseen by a representative of the department of higher education, that provides advice and counsel for the implementation of OER throughout the commonwealth.

(b) (1) To achieve, promote and support college affordability and promote student academic success and completion across the commonwealth, there shall be established and set up on the books of the commonwealth a separate fund to be known as the Open Educational Resource Trust Fund. The fund shall be used to support the development and distribution of open educational resources, as defined in section 10 of chapter 15A, for university and early college course textbooks and ancillaries, to reduce the cost of college education and decrease financial hardships, including food and housing insecurity induced and exacerbated by rising education costs.

(2) The commissioner of the department of higher education shall administer the fund to assist in promoting the development, distribution and use of OER. There shall be credited to the fund:

(i) revenue from appropriations and other money authorized by the general court and specifically designated to be credited to the fund or provided for the commissioner’s discretion;

(ii) funds from public and private sources such as gifts, grants and donations to further the availability of open educational resources; and

(iii) interest earned on money in the fund.

(3) Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(4) Amounts received from private sources shall be approved by the commissioner of the department of higher education and subject to review before being deposited in the fund to ensure that pledged funds are not accompanied by conditions, explicit or implicit, on the implementation of OER materials that may be detrimental to the fund's equitable and cost-saving mission. The department shall make this review publicly available on its website.

(c) Amounts credited to the fund may be expended, without further appropriation, by the commissioner for purposes related to the development, distribution, availability and use of open educational resources, including:

(i) the development, adaptation, purchase, distribution, availability, publication and implementation of curricular materials that are free for students to use;

(ii) professional development and training, including the provision of trainings, seminars, conferences, materials and mentorship for educators in the development and understanding of how to use and distribute OER in the higher education classroom;

(iii) technical assistance, including editors, instructional specialists and technologists, graphic designers, accessibility specialists, diversity, equity and inclusion specialists, repository coordinators and other staff contracted to provide required wraparound services for faculty; and

(iv) department staff to support existing and additional OER activities generated by this legislation.

(d)(1) There shall be a competitive grant program to promote and support the development of open educational resources for students in public higher education institutions and early college programs. Department staff, including the Statewide OER Coordinator, shall review and make recommendations to the commissioner on grant applications. The commissioner shall make final OER grant award decisions. The department may expend funds from the fund for the development and implementation of this grant program.

(2) The commissioner may convene the Statewide OER Advisory Council to make recommendations on eligibility for grant prioritization to maximize the benefits of the grant program, including maximizing savings, achieving equity and supporting student success.

(3) Public Institutions of higher education shall inform students of OER courses that use curricula or resources funded by the fund.

(4) Recipients of OER funding shall complete OER Key Performance Indicator reporting, as developed by the department, to document the impact of the program.

SECTION 3. Chapter 15A of the General Laws as appearing in the 2022 official edition, is hereby amended by inserting after Section 49 the following new section:

Section 50. (a) Subject to appropriation, the commissioner shall develop and implement a pilot program to provide no-cost digital textbooks or other commercial digital learning materials in order to achieve savings for students enrolled in the institution and improve student outcomes.

(b)The commissioner, in considering a pilot programs eligibility to receive funds under this section, shall ensure that said pilot program meet the following criteria:

(1) make a good faith effort to achieve the highest level of savings for students through the sustainable expanded use of digital textbooks in courses offered by the institution;

(2) produce the highest quality digital textbooks that can be most easily utilized and adapted by faculty members at the institution, and correspond to the highest enrollment courses at the institution;

(3) ensure that the full and complete digital content of each digital textbook created or adapted in accordance with the pilot program is made available to students enrolled in the institution:

(i) on the institution's college bookstore website in an easily accessible location; and

(ii) in a machine readable, digital format that a student can download at no cost;

(4) ensure that the institution is making a good faith effort to provide digital textbooks to students; and

(5) provide for the implementation of programs which reduce the cost of commercial digital learning materials.

SECTION 4. Section 1I of chapter 69 of the General Laws, as amended by sections 2 and 3 of chapter 98 of the acts of 2021, is hereby further amended by inserting after the sixteenth paragraph the following paragraph:-

94 Annually, not later than November 1, the commissioner of higher education shall file a
95 report with the clerks of the house of representatives and the senate, the joint committee on
96 higher education and the house and senate committees on ways and means on the Open
97 Educational Resource Trust Fund's activities. The department shall make the report publicly
98 available on its website, along with the names of materials developed or used as a result of the
99 grant awards and the recipient organizations. The report shall include, but not be limited to:

100 (i) the source and amount of funds received;

101 (ii) the expenditures made from the fund and the purposes of such expenditures;

102 (iii) the names of institutions who have received the funds, the numbers of students
103 projected to have benefitted from the expenditures based on number of students enrolled in
104 specific classes, and an estimated amount of money saved as a result of the development and
105 distribution of open educational resources;

106 (iv) any anticipated remaining revenue from awards;

107 (v) the number of schools and school districts that have used the fund to implement a new
108 OER class or enhance or maintain current programming; and

109 (vi) the number of schools and school districts that applied for, but were not granted,
110 funding.

111 SECTION 5. Section 1 shall take effect upon its enactment.